

NAPCS Unionization Research — State — Charter Sector Overview

Minnesota — BMS (MN) Jurisdiction — May 2026

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Section 1: State Overview

State	Minnesota
Labor Board	BMS (MN) — Minnesota Bureau of Mediation Services
Governing Law	Minnesota Public Employment Labor Relations Act (PELRA), Minn. Stat. §179A. 2023 PELRA amendments explicitly included charter school employees as public employees — all MN charter organizing now routes through BMS. Pre-2023 certifications (TCGIS, CSE, Hiawatha) were processed via NLRB because schools were treated as private employers before the amendment.
Federal NLRB Jurisdiction	BMS (MN) has exclusive jurisdiction. Federal NLRB does not apply.
Right-to-Work	NOT a Right-to-Work State — Minnesota has no right-to-work statute. Right-to-work legislation has been proposed in the Minnesota Legislature but has not been enacted. MN charter school employees are public employees under PELRA (Minn. Stat. §179A) following the 2023 amendments; union security provisions are available in collective bargaining agreements. (RTW legislation proposed but not enacted as of May 2026.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	YES — BMS (MN) allows card-check authorization — petition with sufficient authorization cards can result in certification without an election if employer does not contest.
Registry Sweep	COMPLETE — April 30, 2026 (Session 2) — 309 charter schools searched
Research Window	March 2026 (Session 1 — open-source) + April 30, 2026 (Session 2 — Registry BMS scan)

Section 2: Charter Sector Landscape

Total charter schools in Minnesota: 309 (Charter School Registry v50 (NCES/ELSI 2024-25; 309 open MN charter schools as of May 2026)). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Confirmed Union Schools (open)	6	1.9%	Education Minnesota (EdMN) / NEA / AFT dual-affiliate covers all confirmed schools. Includes Hiawatha Academies network (3 active campuses, one NLRB unit). TCGIS and CSE certified via NLRB pre-2023; ASA via BMS card-check 2021. Two additional schools approved for NAPCS addition (Great River, Ubah Academy) — NAPCS IDs pending assignment.
Confirmed (closed — 3-year lookback)	1	0.3%	One NAPCS school confirmed organized prior to closure (Hiawatha Kingfield campus, closed end of 2023-24 school year). Documented per project 3-year lookback policy.
No Labor Board Records Found	302	97.7%	No BMS or NLRB records found for remaining 302 MN charter schools. Full 309-school open

			registry confirmed (April 2026).
Total Open MN Charter Schools	309	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25). Previous figure of 165 (Registry v6, April 2026) was stale and has been corrected.

Charter Sector Enrollment

Total Charter Enrollment	72,096 students — 8.2% of state K–12 enrollment (876,182 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	22,658 students in network-affiliated schools — 31.4% of total charter enrollment
Students in Organized Charter Schools	0 students documented
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
Minnesota Transitions Charter School	CMO	9	8	—	5,682
Community School of Excellence	CMO	6	6	1	1,455
Prodeo Academy	CMO	6	6	—	1,116
New Century School	CMO	5	5	—	966
Best Academy	CMO	4	4	—	790
Lionsgate Academy	CMO	4	4	—	412
Metro Schools Charter	CMO	4	4	—	1,535
STEP Academy	CMO	4	4	—	847
Success Academy MN	CMO	4	4	—	366
Universal Academy	CMO	4	4	—	679
Academias La Paz	CMO	3	3	—	568
Cologne Academy	CMO	3	3	—	731
Minnesota Wildflower Montessori	CMO	3	3	—	27
Minnesota Internship Center	CMO	3	3	—	324
Higher Ground Academy	CMO	3	3	—	1,163
Hiawatha Academies	CMO	3	3	3	1,586

Seven Hills Preparatory Academy	CMO	3	3	—	1,096
AFSA	CMO	2	2	—	395
Technical Academies of MN	CMO	2	2	—	116
KIPP Minnesota	CMO	2	2	—	231
Twin Cities International Schools	CMO	2	2	—	921
Edison Schools Duluth	CMO	2	2	—	780
Spero Academy	CMO	2	2	—	275
Star of the North Academy	CMO	2	2	—	344
TrekNorth	CMO	2	2	—	253
TOTAL — All CMO/EMO Schools in Minnesota		87		4 organized — 2,146 students in organized network schools (3.0% of total charter enrollment)	

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

25 CMO (nonprofit). Approximately 222 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of May 2026.

1: Legal & Jurisdictional Framework

Minnesota Public Employment Labor Relations Act (PELRA), Minn. Stat. §179A. 2023 PELRA amendments explicitly included charter school employees as public employees — all MN charter organizing now routes through BMS. Pre-2023 certifications (TCGIS, CSE, Hiawatha) were processed via NLRB because schools were treated as private employers before the amendment. Minnesota is not a right-to-work state (Minnesota has no right-to-work statute. Right-to-work legislation has been proposed in the Minnesota Legislature but has not been enacted. MN charter school employees are public employees under PELRA (Minn. Stat. §179A) following the 2023 amendments; union security provisions are available in collective bargaining agreements.). BMS (MN) has exclusive jurisdiction. Federal NLRB does not apply to charter schools in Minnesota. Card-check recognition is available under BMS (MN) allows card-check authorization — petition with sufficient authorization cards can result in certification without an election if employer does not contest..

2: Charter Sector Structure

Minnesota operates 309 open-enrollment charter schools, enrolling approximately 72,096 students. 25 charter management organizations and education management organizations operate in Minnesota. The largest networks by campus count are Minnesota Transitions Charter School (9 campuses in state), Community School of Excellence (6 campuses in state), Prodeo Academy (6 campuses in state). Approximately 222 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Minnesota charter school labor relations have received focused press coverage around two clusters: the 2014 TCGIS and CSE certifications (Star Tribune, EdMN press) and the simultaneous June 2021 Hiawatha Academies and Great River School

certifications (Star Tribune, EdMN). The 2023 PELRA amendment extending public employee status to charter school employees received legislative press coverage. The ASA card-check certification (2021, BMS 21RCE0933) and Ubah Academy (2011, BMS 11PCE0488) received no documented press coverage — both were confirmed via BMS records scan, not press reporting.

Stakeholder Communications

Education Minnesota (edmn.org) is the authoritative source for MN charter union communications. EdMN affiliate directory lists all confirmed MN charter chapters. EdMN issued communications on the Hiawatha Academies and Great River certifications (June 2021). Star Tribune covered the 2021 wave. No post-2021 EdMN charter press releases have been identified as of the research date. No documented employer counter-organizing campaigns, ULP charges filed by employers, or public anti-union statements from any MN charter operator have been found in the research record. ASA arbitration (BMS 25RA0150, August 2024) is the only documented post-certification adversarial proceeding — nature and outcome pending BMS records request. Hiawatha Academies engaged BMS mediation (BMS 23PN2305, April 2023) during first contract bargaining; employer posture during that mediation is not documented in public sources.

Legislative Context

The 2023 PELRA amendments (Minn. Stat. §179A) explicitly extended public employee collective bargaining rights to charter school employees, shifting all MN charter organizing from NLRB to BMS jurisdiction. This was a DFL-backed amendment enacted in the 2023 legislative session. SF 2257 (2025-26 session) would establish a two-year moratorium on new charter school formation (July 1, 2025 through July 1, 2027) — referred to Education Policy Committee as of research date; not enacted.

Section 6: Contract & CBA Access Registry

BMS (MN) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Twin Cities German Immersion School (TCGIS)	TCGIS Staff Association / EdMN	Active (assumed) Unknown. Gap: CBA period not publicly posted. Obtainable via BMS records request or direct EdMN contact.	EdMN or school directly
Community School of Excellence (CSE)	CSE Staff Association / EdMN	Active (assumed) Unknown. Gap: CBA period not publicly posted. Obtainable via BMS records request or direct EdMN contact.	EdMN or school directly
Hiawatha Academies (3 active campuses)	Hiawatha Area Workers United (HAWU) / EdMN	Unknown — first contract status unconfirmed N/A until first contract ratified	EdMN or HAWU directly
Art and Science Academy (ASA)	ASA Staff Association / EdMN	Unknown — BMS records confirm certification 2021 (21RCE0933) and arbitration Aug 2024 (25RA0150) Unknown — pending BMS records request	BMS records request (cases 21RCE0933 + 25RA0150)
Great River School (NAPCS-ADD-MN-001 — approved)	Great River Staff Association / EdMN	Unknown. Gap: CBA period not publicly posted. Obtainable via BMS records request or direct EdMN contact. Unknown	EdMN or school directly
Ubah Academy	Ubah Academy	Active (assumed —	BMS records request (11PCE0488)

(NAPCS-ADD-MN-002 — approved May 19 2026)	Staff Association / EdMN	BMS 11PCE0488, 2011) Unknown. Gap: CBA period not publicly posted. Obtainable via BMS records request (case 11PCE0488).	
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